CENTRAL ELECTRICITY REGULATORY COMMISSION
NEW DELHI

Petition No. 825/AT/2025

Coram:
Shri Jishnu Barua, Chairperson
Shri Ramesh Babu V., Member
Shri Harish Dudani, Member
Shri Ravinder Singh Dhillon, Member

Date of Order: 7th March, 2026

In the matter of

Petition under Section 63 of the Electricity Act, 2003 for the adoption of tariff discovered through competitive bidding in respect of Transmission Service Provider and inter State transmission systems as defined under sub-section (36) of Section 2 of the Act.

And
In the matter of

Angul Sundargarh Transmission Limited,
Urjanidhi, 1st Floor, 1, Barakhamba Lane,
Connaught Place,
Central Delhi, New Delhi – 110001. **…Petitioner**

Versus

1. Central Transmission Utility of India Limited,
Plot No. 2, Sector 29, Gurugram,
Gurgaon-122001, Haryana.

2. PFC Consulting Limited,
Urjandhi, 1, Barakhamba Lane,
Connaught Place, New Delhi - 110001.

3. H.G. Infra Engineering Limited,
14, Panchwati Colony, Ratanada,
Jodhpur-342001, Rajasthan.

4. North Bihar Power Distribution Co. Limited,
Vidyut Bhawan, bailey road,
Patna-800021, Bihar.

5. South Bihar Power Distribution Co. Limited,
Second Floor, Vidyut Bhawan, bailey road,
Patna-800021, Bihar.

6. Jharkhand Bijli Vitran Nigam Limited,
Engineering Building, H.E.C.,
Dhurwa – 834004, Ranchi.

7. Damodar Valley Corporation,
NBCC Towers, Hall No. 03,
Bhikaji Cama Place,
New Delhi – 110066.

8. Tata Steel Limited,
P.O. Bistupur Jamshedpur,
Jharkhand – 831001.

9. GRIDCO Limited,
Regd. Office, Janpath,
Bhubaneswar – 751022.

10. Energy and Power Department Sikkim,
Top Floor, Secretariat Annexe-I,
Sonam Tshering Marg – 737101,
Gangtok.

11. Sasaram HVDC POWERGRID,
Power Grid Corporation of India Limited,
B-9, Qutab Institutional Area Rd, NRPC Colony,
Block B, Katwaria Sarai, New Delhi – 110019.

12. NTPC Vidyut Vyapar Nigam Limited,
NTPC Bhawan, Core 7, SCOPE Complex,
7 Institutional Area, Lodhi Road,
New Delhi – 110003.

13. Dans Energy Pvt. Limited,
10th Floor, DLF Building No-8,
Tower –C, DLF Cyber City, Phase-II,
Gurugram – 122002, Haryana.

14. South Easten Railway, HQ,
11, Garden Reach Road, BNR,
South Eastern Railway, Kolkata – 700043.

15. HVDC Alipurduar,
Power Grid Corporation of India Limited,
B-9, Qutab Institutional Area Rd,
NRPC Colony, Block B, Katwaria Sarai,
New Delhi -110019.

16. Shiga Energy Private Limited,
B-1/E-24, Mohan Cooperative Industrial Area
Mathura Road, New Delhi – 110044.

17. Sembcorp Energy India Limited,
Building 7A, Level 5, DLF Cyber City,
Gurugram, Haryana – 122002.

18. NLC India Limited,
No-135, EVR Periyar High Road,
Kilpauk, Chennai - 600010, Tamil Nadu.

19. Tamil Nadu Generation and Distribution Corporation Limited,
144, Annasalai, Chennai,
Tamil Nadu - 600002.

20. Kerala State Electricity Board Limited,
Vydyuthi Bhavanam, Pattom,
Thiruvananthapuram – 695004, Kerala.

21. Electricity Department, Government of Puducherry,
137, NSC Bose Salai,
Puducherry – 605001.

22. West Bengal State Electricity Distribution Company Limited,
D Vidyut Bhavan,
Block-DJ, Sector-II, Bidhannagar**,**
Kolkata – 700091, West Bengal.
…Respondents

Parties Present:
Shri Siddharth Patnaik, Advocate, ASTL
Shri Ankit Konwar, Advocate, ASTL
Ms. Aafreen Khan, Advocate, ASTL
Shri Akshayvat Kislay, CTUIL

ORDER

The Petitioner, Angul Sundargarh Transmission Limited, has filed the present Petition under Section 63 of the Electricity Act, 2003 (hereinafter "the Act") for the adoption of transmission charges with respect to the "Transmission System for Eastern Region Generation Scheme-I (ERGS-I)" (hereinafter referred to as 'Project') on a Build, Own, Operate and Transfer Basis (hereinafter referred to as "BOOT Basis"). The Petitioner has made the following prayers:

"(a) Adopt the Transmission Charges in respect of the Inter-State

Transmission System (ISTS) for transmission of electricity under the Eastern Region Generation Scheme – I (ERGS-I), as discovered through the Tariff Based Competitive Bidding process conducted in accordance with the Tariff Based Competitive Bidding Guidelines for Transmission Service issued by the Ministry of Power, Government of India;

(b) Permit the sharing and recovery of the Transmission Charges for the said Inter-State Transmission System (ISTS) in accordance with the provisions of the Central Electricity Regulatory Commission (Sharing of Inter-State Transmission Charges and Losses) Regulations, 2020, and any amendments or modifications thereto as may be notified by this Hon'ble Commission from time to time;

(c) Pass such other order or orders as this Commission may deem just, fit, and proper in the facts and circumstances of the present case."

2. On receipt of the present Petition, the Bid Process Coordinator (hereinafter referred to as "the BPC"), PFC Consulting Limited (hereinafter referred to as "PFCCL"), vide letter dated 26.9.2025, was directed to submit the relevant documents regarding the complete process of the competitive bidding. The necessary details have been filed by the BPC under an affidavit dated 9.10.2025.

Hearing dated 13.11.2025, 3.12.2025, and 2.1.2026

3. On 3.12.2025, notice was issued to the Respondents to file their respective replies. During the course of the hearing, the Petitioner was directed to implead NLC India Limited, the developer of the Talabira Generation Project, and all the beneficiaries of the Eastern Region as parties to the present Petition and to file a revised memo of parties. In compliance with the directions issued vide Record of Proceedings (hereinafter referred to as "RoP") dated 13.11.2025, the Petitioner, vide affidavit dated 20.11.2025, filed the revised memo of parties.

4. Vide RoP dated 3.12.2025, the Petitioner was again directed to implead all the beneficiaries of power from the 2400 MW Talabira Thermal Power Project, including WBSEDCL, as Respondents and to file a revised memo of parties. In

compliance with the RoP dated 3.12.2025, the Petitioner vide affidavit dated 12.12.2025 has filed the revised memo of parties by impleading all the beneficiaries of power from the 2400 MW Talabira TPP.

Hearing dated 2.1.2026

5. During the hearing on 2.1.2026, the learned counsel for the Petitioner submitted that the Petitioner has complied with the directions issued vide RoP dated 3.12.2025 and filed an amended memo of Parties impleading all the beneficiaries of 2400 MW Talabira TPP and WBSEDCL as parties to the Petitions. After hearing the learned counsels for the parties, the matter was reserved for order.

Analysis and Decision

6. We have considered the submissions of the Petitioner, BPC, and CTUIL and perused the documents available on record. Section 63 of the Act provides as under:

> *"Section 63: Determination of tariff by bidding process: Notwithstanding anything contained in section 62, the Appropriate Commission shall adopt the tariff if such tariff has been determined through transparent process of bidding in accordance with the guidelines issued by the Central Government."*

7. The Ministry of Power, Government of India, has notified the "Tariff based Competitive bidding Guidelines for Transmission Service" and "Guidelines for Encouraging Competition in Development of Transmission Projects" (hereinafter referred to as "the Guidelines") under Section 63 of the Act vide Resolution No. 15/1/2017-Trans dated 10.8.2021, as amended from time to time. The salient features of the Guidelines are as under:

(a) The Guidelines are applicable for the procurement of transmission services for transmission of electricity through tariff based competitive bidding

for selection of the Transmission Service Provider (TSP) for new transmission system on a Build, Own, Operate and Transfer basis.

(b) For procurement of the transmission services required for any inter-State transmission Project, the Central Government shall notify the CTUIL or any Central Government Organization/ Central Public Sector Undertaking or its wholly owned subsidiary (Special Purpose Vehicle) to be the Bid Process Coordinator (BPC), who would be responsible for the coordinating the bid process.

(c) The BPC shall prepare the bid documents in accordance with the Guidelines and obtain approval of the Appropriate Government, or alternatively, the BPC can use the Standard Bid Documents notified by the Ministry of Power. Any material deviation from the Standard Bidding Documents shall be made only with the prior approval of the Appropriate Government. Intimation about initiation of the bidding process shall be sent by the BPC to the Appropriate Commission.

(d) For the procurement of the transmission services under the guidelines, BPC shall adopt a single stage two envelope tender process featuring Request for Proposal (RfP). The entire bidding process shall be conducted online through electronic medium under e-reverse bidding framework.

(e) RfP notice should be published in at least two national newspapers, website of the BPC and preferably in trade magazines also, so as to accord it wide publicity. The bidding shall necessarily be by way of International

Competitive Bidding (ICB). For the purpose of issue of RfP, minimum conditions to be met by the bidder shall be specified in the RfP.

(f) Standard documentation to be provided in the RfP shall include definitions of requirements including brief description of the Project, commissioning milestones to be achieved by the bidders, qualification requirements to be met by the bidders including, minimum net worth, etc. with necessary proof of the same, as outlined in the bid documents, Specified target dates/months for commissioning and commercial operations, Standard Transmission Service Agreement (TSA), agreement(s) under the Central Electricity Regulatory Commission (Sharing of Inter State Transmission Charges and Losses) Regulations as amended from time to time, period of validity of offer of bidder, TSA proposed to be entered with the SPV including amendments, bid evaluation methodology to be adopted by the BPC, specification regarding bid bond as well as the Contract Performance Guarantee to be furnished by the bidders, proposed indemnification agreement between the TSP and the Nodal Agency, liquidated damages that shall apply in the event of delay in start of providing the transmission services and technical, operational and safety criteria to be met by the bidder/TSP and requirement of obtaining transmission licence from the Appropriate Commission.

(g) The TSP, on the date of acquisition of the SPV from the BPC will enter into a Transmission Service Agreement with the Nodal Agency.

(h) To ensure competitiveness, the minimum number of qualified bidders shall be two. For inter-State transmission system, bids shall be opened in the

office of the CEA by a bid committee comprising of at least one member from CEA and one member from BPC. For inter-State transmission system, CEA shall constitute a committee for evaluation of the bids with at least one representative from the CEA and not less than two representatives from the concerned Regional Power Committees and one independent member. Further, in case project is inter-regional, there shall be at least one representative from every concerned RPC. The technical bids shall be examined to ensure that the bids submitted meet minimum eligibility criteria set out in the bid documents on all the technical evaluation parameters. Only the bids that meet all elements of the minimum technical criteria set out in the bid documents shall be considered for further evaluation on the transmission charges bids. The online initial price bids shall be electronically opened by the bid opening committee in the presence of the bid evaluation committee. The bidder who has quoted the lowest transmission charge as per the evaluation procedure shall be considered for the award.

(i) The BPC is required to complete e-reverse bidding after opening of the initial offer within 75 days. The procurer may give extended time frame indicated herein based on the prevailing circumstances, and such alterations shall not be construed to be deviation from these guidelines.

(j) The TSP shall make an application for the grant of a transmission licence to the Appropriate Commission within five (5) working days from the date of execution of the Share Purchase Agreement for acquisition of the SPV.

(k) The BPC shall make the final result of evaluation of all bids public. The final TSA, along with the certification by the bid evaluation committee, shall be forwarded to the Appropriate Commission, for the adoption of tariff discovered from the quoted annual transmission charges during the e-reverse bidding process in terms of Section 63 of the Act.

8. Therefore, we have to examine whether the Guidelines issued by the Central Government have been followed in the present case in a transparent process of bidding.

9. The Ministry of Power, Government of India, vide its Gazette Notification No. CG-DL-E-23012024-251570 dated 23.1.2024, has notified the PFCCL as a Bid Process Coordinator for the purpose of selection of bidder as Transmission Service Provider to establish Inter-State Transmission System for "Eastern Region Generation Scheme-I (ERGS-I)" on a Build, Own, Operate and Transfer Basis through a tariff based competitive bidding process.

10. Angul Sundargarh Transmission Limited was incorporated on 1.3.2024 under the Companies Act, 2013, as a wholly owned subsidiary of PFCCL with the objective to establish the inter-State Transmission System for "Eastern Region Generation Scheme-I (ERGS-I)" and to act as the Transmission Service Provider after being acquired by the successful bidder. The main objectives of the Petitioner Company in its Memorandum of Association are as under:

> *"To develop Power System Network, To plan, promote and develop an integrated and efficient power transmission system network in all its aspects including planning, investigation, research, design and engineering, preparation of preliminary, feasibility and definite project reports, construction, operation and maintenance of transmission lines, sub-stations, load dispatch stations and communication facilities and appurtenant works, coordination of*

integrated operation of regional and national grid system, execution of turn-key jobs for other utilities/organizations and wheeling of power in accordance with the policies, guidelines and objectives laid down by the Central Government from time to time".

11. BPC prepared the bidding document (RfP) in accordance with the Standard Bid Documents issued by the Ministry of Power, Government of India.

12. The BPC started the process of selection of the successful bidder with the publication of a Global Invitation for Qualification for the selection of a developer on a BOOT basis for the Project. The notice for the RfP was published in National/International newspapers on 21.1.2025, with the last date of submission of response to RfP as 25.3.2025. Intimation regarding the initiation of the bid process was given to this Commission on 29.1.2025 in accordance with Clause 4.2 of the Guidelines dated 10.8.2021.

13. Factual Matrixes of the bidding process are as under:

S. No.	Events	Date
1.	Publication of RfP	21.1.2025
2.	Intimation to the Hon'ble Commission	29.1.2025
3.	RFP (Technical)& Price Bid Submission	23.5.2025
4.	RFP (Technical) Bid Opening	23.5.2025
5.	RFP (Financial) Initial Price Offer -Opening	10.6.2025
6.	e-Reverse Auction	11.6.2025
7.	No. of Bidders participated in the e-Reverse Auction	None (As mentioned in para 16 below)
8.	Rounds of E-Reverse Auction	Zero (since no bids were received during e-RA from any of the Bidders)
9.	Final Bid Evaluation Committee Meeting	12.6.2025
10.	Issuance of the LoI	19.6.2025
11.	Signing of Agreements & transfer of the SPV	28.7.2025

12.	Estimated Cost of the Project	Rs. 4,117.00 Million

14. The scope of the Project as per the Request for Proposal and the Transmission Service Agreement is as under:

Sr. No.	Name of Transmission Element	SCOD in months from Effective Date
1.	LILO of both circuits of Angul – Sundargarh (Jharsuguda) 765 kV 2xS/c lines at NLC-Talabira generation switchyard	28.03.2028

Note:

NLC India Ltd. shall provide following at 765kV level its Talabira generation switchyard:

a. *2 no. 765 kV GIS line bays with PIR in different diameters for termination of Talabira - Sundargarh (Jharsuguda) 765 kV D/c line.*

b. *2 no. of 765kV GIS line bays with PIR in different diameters for termination of Talabira – Angul 765 kV D/c line, each with 765 kV, 1x240 MVAr (3x80 MVAr single phase units) switchable line reactor along with 400ohm NGR (with NGR bypass arrangement). There shall be total 7x80MVAr single phase units against 2x240 MVAr line reactors and the 7th 1- phase unit shall be spare as hot stand by. The spare 1-phase shunt reactor unit shall be placed and connected in such a way that the spare unit can be utilized without its physical movement. Further, the connection arrangement of switchable line reactors shall be such that it can be used as line reactor as well as bus reactor with suitable NGR bypass arrangement.*

c. *The line lengths mentioned above are approximate as the exact length shall be obtained after the detailed survey.*

15. For the purpose of evaluation of bids, the Bid Evaluation Committee (BEC) comprising the following was constituted:

S. No.	Name	Designation
1.	Shri Rajesh Kumar Singh, General Manager, SBI Commercial Client Group Regional office-II, New Delhi	Chairman of the Committee

2.	Shri Shyam Kejriwal, Superintending Engineer, ERPC	Member
3.	Smt. Sasmita Parhi AGM, OPTCL	Member
4.	Shri Bhanwar Singh Meena, Director (PSE&TD Division), Central Electricity Authority	Member
5.	Shri B. S. Bairwa, Director, (PSPA-II Division) CEA	Member
6.	Shri Neeraj Singh, Chairman, Angul Sundargarh Transmission Limited, New Delhi	Convener - Member of the Committee

16. The RfP was issued on 21.1.2025. At the RfP (Technical and Financial) stage, three bidders, namely, (i) H G Infra Engineering Limited; (ii) The Tata Power Company Limited, and (iii) Power Grid Corporation of India Limited, submitted their offers. The RfP (Technical) bids of the bidders were opened by the Bid Opening Committee at the Central Electricity Authority on 23.3.2025 in the presence of a representative of the bidders. Based on the recommendation of the Bid Evaluation Committee ("BEC"), the RfP (Financial) Bids-Initial Price Offer of the bidders were opened on 10.6.2025. The Lowest Initial Price Offer (Best Deal) discovered on the MSTC portal was Rs. 431.11 million per annum. The details of the quoted transmission charges by the bidders are as under:

S. No.	Name of the Bidder	Quoted Transmission Charges from the Initial Offer (in Rs. million per annum)	Rank
1.	H G Infra Engineering Limited	431.11	L1
2.	The Tata Power Company Limited	890.00	L2
3.	Power Grid Corporation of India Limited	950.00	L3

17. As per the provisions of the RfP documents, BEC recommended the three qualified bidders to participate in the e-reverse auction stage and submit their final

offer. Of the three qualified bidders, none participated in the e-reverse auction. The e-reverse auction was conducted on the MSTC portal on 11.6.2025 and concluded on the same day. As per clause 9.12 of the Guidelines, since no bids were received during e-RA from any of the Bidders, the Initial Offer is considered as the Final Offer in line with the provisions of the RfP. The Final Offer (Quoted Transmission Charges) of the bidder as quoted at the time of closing of the e-reverse auction is as under:

S. No.	Name of the Bidder	Final Quoted Transmission Charges (in Indian Rupees million per annum)	Rank
1.	H G Infra Engineering Limited	431.11 (Not Participated in e-RA)	L1
2.	The Tata Power Company Limited	890.00 (Not Participated in e-RA)	L2
3.	Power Grid Corporation of India Limited	950.00 (Not Participated in e-RA)	L3

18. Based on the e-reverse bidding, BEC, in its meeting held on 12.6.2025, recommended H G Infra Engineering Limited, with the lowest transmission charges of Rs. 431.11 million per annum, as the successful bidder.

19. Letter of Intent was issued by the BPC on 19.6.2025 to the successful bidder, i.e., H G Infra Engineering Limited. In accordance with Clause 12.3 of the Guidelines, the BPC has hosted on the website of PFCCL the final result of the evaluation of the bids for the selection of a developer for the Project.

20. In accordance with the provisions of the bid documents and upon the issuance of LoI to the successful bidder (H G Infra Engineering Limited) and acquisition of the SPV (the Petitioner) by the successful bidder, the Petitioner has prayed for the adoption of transmission charges for the Project, which has been discovered through the competitive bidding process.

21. In accordance with Clause 2.15.2 of the RfP, the selected bidder shall, within 10 days of the issue of the Letter of Intent, accomplish the following tasks:

a) Provide the Contract Performance Guarantee in favour of the Nodal Agency;

b) Execute the Share Purchase Agreement and the Transmission Service Agreement;

c) Acquire, for the Acquisition Price, one hundred per cent (100%) equity shareholding of Angul Sundargarh Transmission Limited from PFCCL, along with all its related assets and liabilities.

22. The proviso to Clause 2.15.2 of the RfP provides that "if for any reason attributable to the BPC, the said activities are not completed by the Selected Bidder within the above period of ten (10) days as mentioned in this clause, such period of 10 days shall be extended, on a day-to-day basis till the end of the Bid validity period". As per the above provision, the selected bidder was required to complete all the activities, including the acquisition of the SPVs, by 30.6.2025. Though the LoI was issued on 19.6.2025, BPC, vide its letter dated 28.7.2025, in terms of Clause 2.15.2 of the RfP, extended the date up to 28.7.2025 for completion of all activities by the successful bidder. The selected bidder furnished the Contract Performance Guarantee in favour of the Nodal Agency (CTUIL) for Rs. 10.00 crore on 26.6.2025 and acquired a hundred per cent equity holding in the applicant company on 28.7.2025, after execution of the Share Purchase Agreement. As per clause 2.15.4 of the RfP, TSP is required to apply to the Commission for the grant of a transmission licence within five working days of the issuance of the acquisition of the SPV to the

successful bidder. The successful bidder, namely H G Infra Engineering Limited, acquired the SPV on 28.7.2025. Accordingly, the TSP has filed the instant Petition for the adoption of transmission charges on 4.8.2025 through e-filing.

23. The Petitioner has approached the Commission with a separate application for a grant of transmission licence. The Commission, vide order dated 13.2.2026 in Petition No. 824/TL/2025, on being satisfied that the Petitioner, *prima facie*, qualifies for the grant of transmission licence as prayed for, directed publication of notices under clause (a) of sub-section (5) of Section 15 of the Act, inviting suggestions/ objections to the proposal of the Commission.

24. In accordance with the Guidelines, BEC has to certify that the tariff has been discovered through a transparent process of bidding, and the tariff discovered is in line with prevailing market prices. In the minutes of the eighth Meeting of the Bid Evaluation Committee held on 12.6.2025, the following have been recorded:

> *"1. The eighth meeting of the Bid Evaluation Committee (BEC) for evaluation of RFP (Financial) bids for the transmission scheme "Eastern Region Generation Scheme-I (ERGS-I)" was held on 12.06.2025 at 1600 hrs (IST) through Video Conferencing (VC). All the members of BEC were present.*
>
> *2. The RFP (Financial) Bid - Initial Offer for the following three (03) qualified bidders were opened online on MSTC portal by the Bid Opening Committee in the office of Central Electricity Authority (CEA) in presence of BEC members through VC on 10.06.2025 at 1500 hrs (IST):*
>
> *i. H.G. Infra Engineering Limited*
> *ii. The Tata Power Company Limited*
> *iii. Power Grid Corporation of India Limited*
>
> *3. The lowest Quoted Transmission Charges discovered from the Initial Offer was Rs. 431.11 million per annum which was declared as the initial price for quoting the final offers during e-reverse auction process.*
>
> *4. The lowest Initial Offer at MSTC portal i.e. Rs. 431.11 million per annum was communicated (duly acknowledged by bidders) to the above three (03)*

bidders qualified for participating in the e-reverse auction process which was held on MSTC Portal on 11.06.2025 at 1000 hrs (IST) onwards.

5. The e-reverse auction process was closed after the initial round, on same day i.e., on 11.06.2025 at 1200 hrs (IST). No bidders participated in e-reverse auction.

6. As per RFP "In case, no Final Offer is received during the e-reverse bidding stage then the lowest "Initial Offer" shall be deemed to be the Final Offer". Accordingly, the Final Offer (Quoted Transmission Charges) of each bidder as quoted at the time of closing of e-reverse auction is as under (copy of e-reverse bidding statement generated at MSTC portal is attached at Annexure-A):

S. No.	***Name of the Bidder***	***Final Quoted Transmission Charges (in Indian Rupees million per annum)***	***Rank***
1.	*H G Infra Engineering Limited*	*431.11 (Not Participated in e-RA)*	*L1*
2.	*The Tata Power Company Limited*	*890.00 (Not Participated in e-RA)*	*L2*
3.	*Power Grid Corporation of India Limited*	*950.00 (Not Participated in e-RA)*	*L3*

7. As per Clause 3.6.1 of RFP "...However, if no bid is received during the e-reverse bidding stage then the Bidder with lowest quoted initial transmission charges ("Initial Offer") during e-bidding stage shall be declared as the Successful Bidder, subject to verification of the original hard copies of Annexure 3, Annexure 4 (if applicable), Annexure 6 (if applicable) and Annexure 14....".

8. Accordingly, 'H.G. Infra Engineering Limited' is the Bidder with lowest Final Offer and has submitted the original hard copies of Annexure 3 (Power of attorney) and Annexure 14 (Bid Bond) to BPC vide letter dated 12.06.2025. The other annexures were not applicable to the bidder.

9. BPC has confirmed that the original hard copies of Annexure 3 and Annexure 14 submitted by 'H.G. Infra Engineering Limited' are in order and there is no discrepancy between the online submission and physical documents submitted by "H.G. Infra Engineering Limited".

10. In view of above, 'H.G. Infra Engineering Limited' with the Final Offer (Quoted Transmission Charges) of Rs. 431.11 million per annum, may be declared as the successful bidder.

11. BPC, in their evaluation report (Annexure-B) has confirmed the following:

i. The levelised tariff for this project based on CERC norms works out to Rs.431.11 million per annum. This has been computed based on the

estimated cost as communicated by the Cost Committee constituted by CEA and methodology for calculation of tariff as per CERC norms.

ii. The entire bid process has been carried out in accordance with the "Tariff based Competitive Bidding Guidelines for Transmission Service" and "Guidelines for encouraging competition in development of the Transmission Projects" issued by Ministry of Power, Govt, of India under Section 63 of the Electricity Act, 2003 and as amended from time to time.

12. After detailed discussions on the evaluation report prepared by BPC, the BEC decided the following:

i. "H.G. Infra Engineering Limited" is the successful Bidder after the conclusion of the e-reverse auction process with the lowest Quoted Transmission Charges of Rs. 431.11 million per annum.

ii. The quoted tariff is lower than the Levelised Tariff estimated as per CERC norms. The quoted tariff discovered through e-reverse auction process is acceptable.

iii. In view of (i) and (ii) above, 'H.G. Infra Engineering Limited' may be issued Letter of Intent (Lol).

BEC has also issued a separate certificate in this regard (Annexure-C).”

25. Bid Evaluation Committee (BEC), vide its certificate dated 12.6.2025, certified as under:

“It is hereby certified that:

1. The entire bid process has been carried out in accordance with the "Tariff based Competitive Bidding Guidelines for Transmission Service" and "Guidelines for encouraging competition in development of the Transmission Projects" issued by Ministry of Power, Govt, of India under Section 63 of the Electricity Act, 2003 and as amended from time to time.

2. H.G. Infra Engineering Limited has emerged as the Successful Bidder after the conclusion of e-reverse bidding process with the lowest Quoted Transmission Charges of Rs. 431.11 million per annum.

3. The quoted tariff is lower than the Levelised Tariff calculated based on CERC norms considering the Capital Cost for the Project 'Eastern Region Generation Scheme-I (ERGS-I)' as assessed by Cost Committee. The quoted tariff discovered through e-reverse bidding process is acceptable.”

26. In the light of the discussions in the preceding paragraphs, it emerges that the selection of the successful bidder and the discovery of the annual transmission charges of the Project have been carried out by the BPC through a transparent process of competitive bidding in accordance with the Guidelines issued by the Ministry of Power, Government of India under Section 63 of the Act. BEC has certified that the process is in conformity with the Ministry of Power Guidelines. BEC, in its certificate dated 12.6.2025, has certified that H.G. Infra Engineering Limited has emerged as the successful bidder after the conclusion of the e-reverse auction with the lowest transmission charges of Rs. 431.11 million per annum. It is noted that the quoted tariff of Rs. 431.11 million per annum is lower (~ 13.19% Lower) than the estimated CERC levelised tariff (Rs. 496.62 million per annum). Based on the BEC certification, we approve and adopt the single annual transmission charge of Rs. 431.11 million per annum as per the final offer of the successful bidder, subject to the grant of transmission licence to the Petitioner company. The transmission charges shall remain valid throughout the period covered in the TSA.

27. The transmission charges shall be shared as per the decision to be taken in Petition No. 824/TL/2025.

28. Extract copy of this order shall be sent to the Nodal agency, CTUIL.

29. Petition No. 825/AT/2025 is disposed of in terms of the above.

Sd/-	**sd/-**	**sd/-**	**sd/-**
(Ravinder Singh Dhillon)	**(Harish Dudani)**	**(Ramesh Babu V.)**	**(Jishnu Barua)**
Member	**Member**	**Member**	**Chairperson**